

FEDERAL MARITIME COMMISSION

DOCKET NO. 24-01

**Visual Comfort & Co.
v.
COSCO Shipping Lines Co. Ltd.**

**COMPLAINANT’S RESPONSE IN OPPOSITION TO
RESPONDENT’S FIRST MOTION TO COMPEL PRODUCTION OF DOCUMENTS**

Complainant Visual Comfort & Co. (“VCC” or “Complainant”), by counsel, hereby responds in opposition, pursuant to 46 C.F.R. 502.150, to Respondent COSCO Shipping Lines Co. Ltd. (“COSCO” or “Respondent”) Motion to Compel Production of Documents, and in support thereof states the following:

INTRODUCTION

During the case management conference on May 16, 2024 the parties discussed that production of documents has been delayed on both sides. In the same conference, the Presiding Officer ordered motions to compel to be filed by May 31, 2024. Since the conference on May 16, Counsel for VCC has conferred with Counsel for COSCO to narrow and clarify its discovery requests in an effort to avoid motion practice. Accordingly, counsel for both parties clarified their discovery requests and production expectations without issue.

On May 30, COSCO served its Motion to Compel Document Production.¹ In that motion COSCO noted that it was filing its motion to comply with the Commission-imposed deadline but noted that it may withdraw it pending resolution of open issues. VCC now opposes the Motion as moot. VCC has now adequately responded to all of Respondent's requests, without undue objection, and is completing a full forensic scan of email and hard drive documents to complete an even more fulsome production in the coming weeks. It has also served Supplemental Responses and made multiple productions of documents responsive to COSCO's requests. Because VCC has responded to COSCO's requests, an Order compelling compliance is not warranted.

ARGUMENT

COSCO's motion does not appear to claim any deficiency in VCC's responses. Regarding Requests for Documents 1 through 14, Respondent admits that VCC has responded to each request and states "we expect prompt production of the documents on a timetable set by the Presiding Officer." Additionally, Respondent states that the "only immediate questions are: (i) when VCC expects to produce the documents, and (ii) whether VCC will... identify to which RFD specific documents respond."² These questions are not within the scope of a motion to compel responses. Even if they were, they were directly addressed and coordinated in the parties' meet-and-confer.

The Commission's Rules outline the standards for responding to requests for production of documents. FMC Rule 146(b)(2)(ii) states, "For each item or category, the response must either

¹ As mentioned in Respondent's Motion, VCC served responses to COSCO's notice of deficiencies to confirm what was agreed in the parties' meet-and-confer. VCC has served its own Motion to Compel Document Production, per the Presiding Officer's deadline.

² COSCO identified the RFDs to which its productions respond via email on June 6.

state that inspection and related activities will be permitted as requested or state an objection to the request, including the reasons.” 46 C.F.R. 502.146(b)(2)(ii).

The Rules also provide for motions to compel where a party is “failing to... respond to discovery requests,” or where requests “have not been answered or for which evasive or incomplete responses have been given.” 46 C.F.R. 502.150(a)(2)(i)-(ii). COSCO’s arguments fail to address these requirements because VCC has adequately responded and agreed to make available for inspection all responsive documents in its possession. VCC has not unduly objected to Respondent’s requests and has affirmatively promised to supplement its productions because discovery is ongoing and the collection of relevant documents continues. Accordingly, an Order compelling compliance is not warranted. *See Msrf, Inc., Complainant v. Yang Ming Transport Co., Respondent.*, 2023 WL 2240482, at *5 (F.M.C. 2023) (denying a motion to compel where the non-movant did not object and responded to the relevant requests).

It appears that COSCO’s motion was filed solely to secure a mandatory timeline for production of documents set by the Presiding Officer. However, that is outside the scope and purpose of a motion to compel, which is to address actually deficient responses. The timeline requested by Respondent can be found in the Scheduling Order, which enumerates the discovery deadlines. Just as COSCO is awaiting productions from VCC, VCC is awaiting productions from COSCO. VCC’s contemporary Motion to Compel Document Production elaborates upon the same. However, and distinct from COSCO’s responses to VCC’s discovery requests, VCC has not stated objections and has agreed to produce responsive documents as they become available. Per the parties’ meet-and-confer, VCC has informed COSCO of the same. Accordingly, COSCO cannot move to compel responses that have already been made and agreements that have already been clarified on the irrelevant basis that it wants the documents to come in faster. VCC has made two

document productions as of the filing of this opposition and continues to prepare for additional productions.

CONCLUSION AND REQUESTED RELIEF

Based on the foregoing, Complainant respectfully requests that the Presiding Office issue an Order DENYING Respondent's Motion to Compel Discovery.

Dated: June 6, 2024

Respectfully submitted,

/s/ Jennifer M. Oliver

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CERTIFICATE OF SERVICE

I certify that on the 6th day of June, 2024, a true and correct copy of the foregoing was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

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